

24VECV04270 24VECV04270

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-07-17

Motion: DEFENDANT KIA AMERICA, INC.'S MOTION FOR JUDGMENT ON THE PLEADINGS

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CNWI%2C07%2F17%2F2026

Source SHA-256: f997734cc0f5fbb6947bf699e18b848ceea7490264802af96753c7b392b5afe1

Case Number: 24VECV04270 Hearing Date: July 17, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

DEBORAH NUNEZ AKA DEBORAH ABIGAEL NUNEZ,

Plaintiff,

vs.

KIA AMERICA, INC., a California Corporation; and

DOES 1 through 10, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE

NO: 24VECV04270

[TENTATIVE]

ORDER RE: DEFENDANT KIA AMERICA, INC.'S MOTION FOR JUDGMENT ON THE PLEADINGS

Dept.

I

HEARING

DATE: JULY 17, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: SEPTEMBER 5, 2024

TRIAL

DATE: AUGUST 17, 2026

I.

BACKGROUND

On

September 5, 2024, Plaintiff Deborah Nunez ("Plaintiff") filed a complaint against Defendants Kia America, Inc. ("Defendant") and Does 1 to 10 alleging one cause of action for violation of Song-Beverly Act – Breach of Express Warranty.

On

June 18, 2026, Defendant filed the instant motion for judgment on the pleadings.

On

July 6, 2026, Plaintiff filed her opposition.

On

July 10, 2026, Defendant filed its reply.

II.

LEGAL

STANDARDS

"A

motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed." (Burnett v. Chimney Sweep (2004) 123 Cal.App.4th 1057, 1064.) "A motion for judgment on the pleadings may be made either prior to trial or at trial, on the same grounds as could be urged by a general demurrer." (Ponderosa Homes, Inc. v. City of San Ramon (1994) 23 Cal.App.4th 1761, 1767 [citing Stockton Newspapers, Inc. v. Redevelopment Agency (1985) 171 Cal.App.3d 95, 99].) "In deciding or reviewing a judgment on the pleadings, all properly pleaded material facts are deemed to be true, as well as all facts that may be implied or inferred from those expressly alleged." (Fire Ins. Exchange v. Superior Court (2004) 116 Cal.App.4th 446, 452.) However, the court does not accept as true "conclusions of law or fact, opinions, speculation, or allegations contrary to law or facts that are judicially noticed." (Stevenson Real Estate Servs., Inc. v. CB Richard Ellis Real Estate Servs., Inc. (2006) 138 Cal.App.4th

1215, 1219-20.) Further, like a general demurrer, a motion for judgment on the pleadings does not lie as to a portion of a cause of action, and if any part of a cause of action is properly pleaded, the motion will be overruled. (Fire Ins. Exchange, *supra*, 116 Cal.App.4th at 552.)

“In

the case of either a demurrer or a motion for judgment on the pleadings, leave to amend should be granted if there is any reasonable possibility that the plaintiff can state a good cause of action.” (Gami v. Mullikin Medical Ctr. (1993) 18 Cal.App.4th 870, 876.) If leave to amend is granted, the party against whom the motion is granted must be given 30 days to file an amended pleading. (Cal. Code Civ. Proc. § 438(h)(2).)

III.

DISCUSSION

Requests for Judicial Notice and Evidentiary Objections

As

a preliminary matter, Defendant’s June 18, 2026, requests for judicial notice of Plaintiff’s discovery response and deposition transcript are granted pursuant to Cal. Evid. Code § 452(h). Specifically, a party’s admissions or concessions and deposition transcripts are proper for judicial notice upon a motion for judgment on the pleadings. (See, *Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; see *Garcia v. Sterling* (1985) 176 Cal.App.3d 17, 22; see also *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal.App.4th 735, 746.)

Plaintiff’s

July 6, 2026, evidentiary objections are overruled since, upon a motion for judgment on the pleadings, a court may consider matters which are judicially noticeable. (See *Shin v. Kong* (2000) 80 Cal.App.4th 498.)

Timeliness

Next,

the Court addresses Plaintiff’s argument that the instant motion is untimely. Plaintiff argues that, pursuant to CCP § 438(e), “[n]o motion [for judgment on the pleadings] may be made . . . if a pretrial conference order has been entered pursuant to Section 575, or within 30 days of the date the action is

initially set for trial, whichever is later, unless the court otherwise permits.” (Opposition at 2:3-7.) Initially, this action was set for trial on April 13, 2026. On March 20, 2026, the Court continued trial to August 17, 2026. However, as Defendant notes, pursuant to the parties’ March 16, 2026, joint stipulation to continue trial, all non-discovery trial dates were reset based on the new trial date. (See Stipulation.) Accordingly, the motion is timely.

Analysis

Defendant

moves for judgment on the pleadings on the grounds that Plaintiff’s 2021 Kia K5 (the “Subject Vehicle”) was purchased as a used vehicle and no manufacturer’s new car warranty was issued in connection with that sale, thereby failing to qualify as a “motor vehicle sold with a manufacturer’s new car warranty” under Civ. Code § 1793.22(e)(2). (See Motion at p. 2.)

Importantly,

in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189, the California Supreme Court held that the Song-Beverly Act does not apply to a used car unless a manufacturer’s “new car” warranty is issued at the time of sale. (*Rodriguez*, supra, 17 Cal.5th at 196-197.) Here, under sworn testimony, Plaintiff has stated that the Subject Vehicle was not a new motor vehicle when purchased. (See RJN Exhibit 1 [RFAs] at 3:18-4:6 and 4:24-5:15; see also RJN Exh. 2 [Nunez Depo.] at 9:25-10:2.) These sworn allegations, while contradicting the complaint, take priority over the unsworn allegations within the complaint. (See *Today’s IV v. LA County Metropolitan Transport Authority* (2022) 83 Cal.App.5th 1137, 1175.) Additionally, at her deposition, Plaintiff stated under sworn testimony that the “warranty contract” alleged in her complaint (see Complaint at ¶ 8) was actually the Retail Installment Sale Contract. (See RJN Exh. 2 [Nunez Depo.] at 19:17-20:1.) Accordingly, Plaintiff fails to show that the Subject Vehicle is a “new vehicle” subject to the Song-Beverly Act.

As there

is no reasonable possibility that this deficiency can be cured by amendment, Defendant’s motion is granted without leave to amend.

//

//

//

IV. CONCLUSION

Based

on the foregoing, Defendant's motion for judgment on the pleadings is GRANTED without leave to amend.

Judgment

is entered in favor of Defendant and against Plaintiff.

Defendant

to file and serve a proposed Judgment.

Moving

party to give notice.

Dated: July

_____, 2026 _____

Hon. Karen Moskowitz

Judge

of the Superior Court